

Chandrawati Singh v. State of U.P. & Others

Allahabad High Court · Division Bench · 11 August 2015 · Writ - C No. 36217 of 2013 · **Writ petition disposed of. The challenge to the testing meter report (10.01.2013) and the assessment/provisional bill (15.04.2013) was not examined on merits; the petitioner was relegated to file a representation/objection before respondent no.3 raising all grounds of challenge, and respondent no.3 was directed to decide the same by a reasoned order within four weeks.**

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HEADNOTE

A consumer challenged, by writ, a testing meter report dated 10 January 2013 and an assessment/provisional bill dated 15 April 2013, contending that in preparing the testing meter report the mandatory provisions of the U.P. Electricity Supply Code, 2005 had not been followed, so that the report could not be relied upon and the provisional bill founded on it was not legally justified. A Division Bench of the Allahabad High Court declined to examine these grounds in writ jurisdiction, holding that the grievance could more appropriately be addressed before respondent no.3. Without ruling on whether the testing meter report was prepared in breach of the Supply Code, it disposed of the petition by directing the petitioner to file a representation/objection before respondent no.3 raising all objections and grounds of challenge, and directing that authority to decide the same by a reasoned order within four weeks. The correctness of the testing meter report and the legality of the provisional bill were left to be decided in that forum. The order sits with the meter-dispute cluster in which a consumer must ordinarily exhaust the Clause 5.6 remedy before invoking writ jurisdiction.

FACTUAL SUMMARY

Chandrawati Singh, a consumer, filed Writ - C No. 36217 of 2013 in the Allahabad High Court against the State of U.P. (through its Secretary) and three others, including the electricity distribution authorities. She challenged a testing meter report dated 10 January 2013 and an assessment/provisional bill dated 15 April 2013. Her principal ground was that, in preparing the testing meter report, the mandatory provisions of the U.P. Electricity Supply Code, 2005 had not been followed, with the result that the report could not be relied upon and the provisional bill based on it was not legally justified; the petition also raised various other grounds. The matter passed through a long series of order-sheet listings from 8 July 2013 onward before different Benches, including an adjournment on 28 May 2014, a dismissal in default on 4 July 2014 when none appeared for the petitioner, and the recall of that dismissal and restoration of the petition to its original number on 18 April 2015. At the final hearing on 11 August 2015 the counsel for the petitioner and the learned Standing Counsel were heard; no one appeared on behalf of respondent nos. 2, 3 and 4.

REUSABLE CONSTRUCTIONS

1. A writ challenge to a testing meter report and a provisional/assessment bill, founded on alleged non-compliance with the mandatory provisions of the U.P. Electricity Supply Code, 2005, may be declined in writ jurisdiction and the consumer relegated to raise all such objections and grounds by representation before the competent departmental authority. **11.8.2015**
2. When relegating a consumer to the departmental authority, the Court directs that authority to dispose of the representation/objection by a reasoned order within a fixed period (here four weeks), preserving every ground of challenge for decision in that forum. **11.8.2015**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

RATIO

Challenge to a testing meter report and provisional bill relegated to the departmental authority by representation

QUESTION

Whether a writ court should examine, on the merits, a consumer's challenge to a testing meter report and a provisional/assessment bill founded on alleged breach of the mandatory provisions of the U.P. Electricity Supply Code, 2005, or relegate the consumer to the competent departmental authority?

HOLDING

The grievance is more appropriately addressed before the departmental authority. Without deciding whether the testing meter report was prepared in breach of the mandatory provisions of the Supply Code, 2005, the Court disposed of the writ petition by directing the petitioner to file a representation/objection before respondent no.3 raising all objections and grounds of challenge, and directing respondent no.3 to decide the same by a reasoned order within a further period of four weeks. **11.8.2015**

EVIDENCE *“in preparing the testing meter report, mandatory provisions of U.P. State Electricity Supply Code, 2005 have not been followed and, therefore, testing meter report can not be relied upon”* **11.8.2015**

EVIDENCE *“We are of the view that the grievance of the petitioner can more appropriately be addressed before the respondent no.3.”* **11.8.2015**

EVIDENCE *“the writ petition is disposed of asking the petitioner to file representation/objection before the respondent no.3 raising all the objections/grounds of challenge and the respondent no.3 is directed to dispose of the same within another period of four weeks by a reasoned order”* **11.8.2015**

FLAG Order-sheet matter with no printed page numbers or numbered paragraphs; pins are keyed to the operative order dated 11.8.2015. Keyed to UP-2005::5.6 (meter testing) to sit with the relegation-to-authority cluster (SCJ-1361, SCJ-1362); the Court relegated the challenge without itself citing the clause or ruling on the Supply Code compliance point.

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ A consumer disputing a testing meter report (and the provisional bill based on it) on grounds of non-compliance with the Supply Code, 2005 is ordinarily relegated to the departmental remedy rather than having those grounds examined in writ jurisdiction. **11.8.2015**

alternative-remedy-relegation The writ petition was disposed of by relegating the petitioner to a representation/objection before respondent no.3, the authority being directed to decide it by a reasoned order within four weeks. **11.8.2015**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TESTING METER REPORT DATED 10 JANUARY 2013 WAS PREPARED IN BREACH OF THE MANDATORY PROVISIONS OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Expressly left to the departmental authority (respondent no.3) to decide on the petitioner's representation by a reasoned order within four weeks. **11.8.2015**

NOT DECIDED — LEGALITY OF THE ASSESSMENT/PROVISIONAL BILL DATED 15 APRIL 2013

Not examined on merits; to be raised among the objections and grounds of challenge before respondent no.3. **11.8.2015**

RELATED CASES — SEE ALSO

SCJ-1361 — Shakuntla Devi — same relegation pattern: writ challenging an electricity bill dismissed with liberty to pursue the Clause 5.6 remedy.

SCJ-1362 — Jaydev Singh — writ relegated to Clause 5.6 of the Supply Code; alternate-remedy disposal of a metering/billing grievance.

SCJ-126 — Vimla Tiwari — contrast on the same 5.6 meter cluster, where the Court examined the merits and quashed the s.126/127 assessment rather than relegating.